

23CV03885 Santa Barbara County Coalition for Responsible Cannabis et al v Ceres Farms LLC et al

County: santa-barbara

Division: Civil Law & Motion

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Motion: Motion to Decertify Class

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Tentative Ruling: Santa Barbara County Coalition for Responsible Cannabis et al v Ceres Farms LLC et al

Case Number

23CV03885

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 07/29/2026 - 10:00

Nature of Proceedings

Motion to Decertify Class

Tentative Ruling

Plaintiffs: Robert Curtis, Aaron Arndt.

Defendant Valley Crest Farms: John Cardot, John Kinsey, Ethan Mora, Patrick Toole.

Defendants (all others): Amy Steinfeld, Matthew Hofer.

Acknowledgements

The Court acknowledges the excellent work done by the lawyers on this issue which has been contentious, acrimonious at times. The case is a matter of consequence and when the documents submitted are so robust the Court needs to keep its notes all in one place; cannot get it all done in one sitting; apologize for the typographical and grammatical errors.

RULING

The Court DENIES Valley Crest's Motion to Decertify Class in its entirety.

Analysis

Some Background

This is a motion to decertify a class action filed by Defendant VCR. The original motion for class certification was filed on February 5, 2025, and was heard and granted by the Court on March 5, 2025 (the minute order for which was amended on March 20, 2025).

The next CMC is set for 9/2/26.

A Motion for Summary Judgment is set for 10/14/26.

Pretrial is set for November 18, 2026, at 11:30 am. Actual trial begins the following day. All customized trial documents are due one week in advance.

Class certification/decertification is foundationally about whether the dispute can best be tried as a class.

On 7/15/26 this Court considered a request for a Protective Order and ruled: The motion of Defendant Valley Crest Farms, LLC, for protective order regarding inspection demand of its facility is granted in part. Plaintiff Santa Barbara County Coalition for Responsible Cannabis shall serve a second amended inspection demand containing the descriptive information set forth on page 8, lines 5 through 11 of its opposition, and may conduct an inspection within the parameters of this description. The inspection shall take place on a minimum of 7 days' notice. The parties shall comply with the regulations set forth in title 4 of the California Code of Regulations section 15042. Plaintiff shall be permitted to maintain the confidentiality of its inspection results. Information obtained by the inspection shall be maintained as confidential by Plaintiff as to any third parties. Defendant's motion is otherwise denied, and the parties shall otherwise follow the applicable procedures set forth in Code of Civil Procedure sections 2031.010 through 2031.060.

This Motion

Filed 5/1/26 by the Attorneys for Defendant, Valley Crest Farms by Ethan Mora, John Kinsey, Patrick Toole concurrently with Points and Authorities and the Declaration of Etan Mora, Greg Wolffe, Pamea Dalton, Benjamin Warner, Request for Judicial Notice.

Read and considered it all; summarized: Defendant makes this Motion to Decertify the Class based on changed circumstances, including the following: (1) Plaintiffs' recently-produced Class List is comprised mostly of third parties, which constitutes new evidence that the class is not ascertainable; (2) new expert testimony demonstrates common issues are unlikely to predominate given geographical, biological, environmental, and other

factors; (3) sworn testimony of an unnamed class member and VCF's attempts to depose other purported class members reveal the named Plaintiffs' claims are not typical of the class and common issues do not predominate among all class members; (4) recent amendments to local ordinances setting forth new cannabis odor abatement standards and requirements highlight manageability issues arising from Plaintiffs' failure to articulate methods to evaluate class membership; (5) VCF has ceased use of its vapor phase systems and installed odor abatement systems compliant with the County's ordinances,

rendering Plaintiffs' continuing nuisance the trespass claims moot; (6) Plaintiffs have refused to submit a trial management plan; and (7) there is no substantial benefit to proceeding as a class-Defendant, the unnamed class members, and the conditionally dismissed co-Defendants are more likely to be prejudiced than if the cases proceeded individually.

The Response

Filed 7/9/26 by Robert Curtis, Aaron Arndt Attorneys for Plaintiff; includes Declaration of Robert Curtis, Scott Bordon; Orell Anderson and evidentiary objections to the Declaration of Pamela Dalton; summarized: Defendant Valley Crest Farms, LLC's Motion to Decertify Class ("Motion") is a cynical attempt to make waste of the judicial and party resources that have been devoted to this certified class action. On March 5, 2025, the Court issued its final order granting Plaintiffs' Motion for Class Certification. Valley Crest never filed a motion for reconsideration of that order. Instead, it waited more than a year to file this Motion based on the same cases, the same arguments, and the same underlying evidence or information that was used in opposing class certification. Regardless of how Valley Crest has titled the Motion, its substance shows that it is an untimely motion for reconsideration and should be denied for that reason alone. Despite the near complete overlap between this Motion and its earlier arguments in this case, Valley Crest wrongly asserts that the Motion is based on materially changed circumstances and new evidence. In sum, Valley Crest argues that "new" evidence shows that this litigation cannot proceed on a class-wide basis because (1) individualized inquiry is necessary to determine whether everyone on the

class list falls under the class definition; (2) the depositions of certain absent class members show that common questions of law and fact do not predominate in this case; (3) "new" expert opinions show the difficulty of proving liability on a class-wide basis; and (4) amendments to Santa Barbara's cannabis ordinances renders this case moot. Each of these assertions is demonstrably false. In the end, the Court of Appeal has held that "[a] motion for decertification is not an opportunity for a disgruntled class Defendant to seek a do-over of its previously unsuccessful opposition to certification." (Kight v. CashCall, Inc. (2014) 231 Cal.App.4th 112, 125.) That is exactly what Valley Crest seeks to do in its Motion, and the Court should reaffirm its earlier decision to certify the class.

Decertification undoes the parties and the Court's efforts in certifying and litigating a certified class action, and accordingly the Defendant bears the burden of presenting clear and convincing evidence of materially changed circumstances warranting decertification. Decertification is not an opportunity for a disgruntled class Defendant to seek a do-over of its previously unsuccessful opposition to certification. There are no newly changed circumstances justifying Valley Crest's Motion.

Valley Crest cannot satisfy the standard applicable to motions to decertify, which require

a clear and convincing showing of changed circumstances since certification. This alone is sufficient to deny Valley Crest's Motion. The Court should ignore arguments that are merely restatements of Valley Crest's earlier assertions and disregard "new" opinions or arguments based on information that was available to Valley Crest when it originally opposed class certification. Moreover, even if the declarations of Mr. Wolffe and Dr. Dalton presented new evidence, or demonstrated that there were indeed changed circumstances, the opinions expressed in their declarations involve the merits of the case, not whether the class was properly certified. Valley Crest will have every opportunity to present its expert opinions to support its defenses in this case but now is not the time.

Valley Crest's arguments improperly involve the underlying merits of this case. As Plaintiffs argued in their class certification motion, trial Courts must not decide the merits of a case at class certification. The certification question is essentially a procedural one that does not ask whether an action is legally or factually meritorious. ... A class certification motion is not a license for a free-floating inquiry into the validity of the Complaint's allegations; rather, resolution of disputes over the merits

of a case generally must be postponed until after class certification has been decided, with the Court assuming for purposes of the certification motion that any claims have merit.

Valley Crest again inserts arguments directed at the merits of this litigation in its effort to decertify the class. Such arguments are not only irrelevant to class certification but are also incorrect.

The Reply

Filed by the Attorneys for Defendant Valley Crest [Patrick Toole, John Kinsey, Etahan Mora; includes Request for Judicial Notice and Response to evidentiary objections on 7/16/26; summarized: Plaintiffs' Opposition confirms, rather than refutes, the need for decertification. Plaintiffs no longer defend the case the Court certified. The Complaint alleged that "[t]he main goal of this lawsuit is not money" but abatement. The Opposition abandons that goal, conceding that "[e]ven if Valley Crest never emitted another single terpene from this moment forward," the class will proceed to recover for harms it claims to "have already endured." That concession transforms this action. The injunctive centerpiece is removed, and the alleged damages Plaintiffs say remain, "annoyance and discomfort" under *Kelly v. CB&I Constructors, Inc.* (2009) 179 Cal.App.4th 442, 455,

are necessarily personal to each "resident" by definition. However, the diminution damages Plaintiffs' expert proposes to model are unavailable as a matter of law.

Therefore, what remains relevant to certification is a collection of inherently individual claims established only by separate inquiry. The Opposition fails to meet Plaintiffs' burden that liability claims can be addressed by common methods of proof nor show how Due Process is afforded VCF. To begin, Plaintiffs invent a "clear and convincing evidence" burden that appears in no decision. Plaintiffs' ever-changing Class List as their counsel determines is the opposite of the required objective ascertainable element of class certification. Plaintiffs' answer VCF's expert showing with two declarations proposing studies to be performed in the future is clear admission that no common proof exists today, some three years into this case and just four months from trial. Plaintiffs fail to address the adequacy problem created by the named Plaintiffs' settlements with the co-Defendants, the standing mismatch between the Coalition and the class, superiority, numerosity, or how to resolve through common proof evidence like *Ms. Ishibashi*. Each unanswered ground independently compels decertification, but taken as a whole, clearly compels the

conclusion that decertification is required in this case.

A Motion to Decertify is not a Motion for Reconsideration. California Rules of Court, rule 3.764(a)(4) expressly authorizes a motion to decertify a class, and certification orders are inherently tentative, subject to modification at any time before final judgment. (*Vasquez v. Superior Court* (1971) 4 Cal.3d 800, 821.) Indeed, trial Courts "have the obligation to decertify a class action if individual issues prove unmanageable." (*Duran v. US Bank*

Nat Assn. (2014) 59 Cal.4th 1, 29.) A decertification motion asks a different question than certification: not whether certification was proper when granted, but whether continued class treatment remains proper on the record as it exists today. That question, by definition, was not and could not have been "previously ruled on." Accordingly, Section 1008 of the Code of Civil Procedure and *Powell v. County of Orange* (2011) 197 Cal.App.4th 1573 have no application. Even so, the reconsideration argument fails as a matter of law. Plaintiffs' theory would insulate every certified class from the continuing scrutiny.

Plaintiffs assert VCF must present "clear and convincing evidence of materially changed

circumstances warranting decertification." No authority is cited adopting that standard

because none exists. Green requires that it be "clear there exist changed circumstances"; that phrase describes the evidentiary showing, not a heightened evidentiary burden.

And once new evidence does appear, as in this case, the burden rests where it always has: on Plaintiffs, as the class proponents, to demonstrate the continued existence of an ascertainable class and a well-defined community of interest, with any factual determinations made by a preponderance of the evidence. Indeed, because certification is inherently provisional, trial Courts are required to revisit certification when subsequent developments demonstrate the elements of class certification are no longer satisfied. Plaintiffs do not dispute the timeline. The current Class List was produced on March 9, 2026, roughly a year after certification, and it is the third materially different list Plaintiffs have produced: 260 names in March 2025, 407 names in October 2025, and 105 entries now, which counsel still describes as only "close to final." The deposition of Mr. Yamaoka, the depositions of the named Plaintiffs, and the attempted depositions of Ms. Ishibashi, Mr. Navarro, and Oglesby Ranch LLC all postdate certification. The County lowered its odor threshold in March 9 2026; the deadline to place vapor phase systems ran on March 18, 2026; VCF installed compliant PCO technology; and the County's own Nasal Ranger testing in March and April 2026 confirmed VCF's property-line odor below the new threshold. None of this evidence existed when the class was certified. Green's rule against recycling evidence "available" at certification therefore has no application; evidence that did not yet exist was not available to anyone. This new evidence constitutes a materially different evidentiary record than presented to this Court previously and warrants re-evaluation of whether class treatment remains appropriate. VCF's timing of the motion is not "cynical." Plaintiffs do not address their delay in production of the evolving class list, their delay in responding to discovery and ignore the stay in effect for multiple months preventing VCF from preparing this motion.

Regardless, Plaintiffs attempt to deflect from the real issue: what Plaintiffs represented to the Court regarding certification is not supported by actual evidence. Certification rested on Plaintiffs' representations that the class consisted of dozens of "individuals" whose identities could "easily be ascertained through maps of undisputed validity and publicly available property records." VCF is entitled to (and did) test those representations through post-certification written discovery, retention of exhibits, and depositions of unnamed class members, all of which now reveal that common issues of law and fact do not predominate. Plaintiffs' effort to confine National Solar to fraud cases misreads it; the quoted principle concerns the function of absent-member discovery, not the elements of fraud. The results of that testing are now in: the list that was supposed to be "easily" generated from public records took a year to produce, is majority entities, and remains unsettled months before trial. VCF filed this Motion less than eight weeks after receiving that list. That is diligence, not delay.

Plaintiffs' defense of the List is that Simpluris compiled it, counsel spent weeks vetting it, and counsel may continue to add or "subtract" members until some undefined point before trial. Class membership committed to counsel's discretion is not an objective criterion; it is the absence of one. A judgment cannot mutually bind a class whose composition floats at counsel's election. Plaintiffs' assurance that membership disputes will be "worked out between the parties or resolved at trial" is not a solution; it is a concession that trial will devolve into a serial mini-trials.

The trust and LLC arguments concede the point. There is no dispute that trusts, LLC's and other legal entities may own property. The relevant issue here, however, is class membership requires individual investigation into ownership and occupancy during the Class Period. The new evidence shows that Plaintiffs cannot compile a Class List based on objective criteria. Moreover, and even assuming a trustee or a managing member who actually resides at a property could qualify as an "owner-occupier," the List identifies trusts and LLCs, not natural people, and no public record discloses whether anyone, much less which trustee or member, occupies any of those 57 properties. Plaintiffs'

own example proves it: counsel excluded the Cate School parcels based on counsel's judgment that a school "cannot be said to 'occupy'" its properties, while including dozens of other entities on the unexamined assumption that somebody occupies theirs. Occupancy appears in no publicly available property record; it can be determined only parcel by parcel and person by person. Plaintiffs identify no other method, because there is none.

Sav-On and Marler do not fill the gap. Those cases permit individual proof of eligibility or

damages after liability has been established through common proof. Here, membership, liability, and damages each require individual inquiry, and the List sweeps in scores of persons and entities who "would have no right to recover."

Finally, Plaintiffs never address numerosity: by their own List, at most 48 entries are individuals, and at least nine of those demonstrably fall outside the class definition.

Plaintiffs' principal answer to Dr. Dalton, Mr. Wolfe, and the divergent testimony of the class members themselves is that nuisance is measured by an objective, reasonable-person standard. True, but beside the point. The objective standard fixes the yardstick for how offensive an invasion must be; it does not prove that an invasion occurred. Each claimant must still prove an interference with that claimant's use and enjoyment of that claimant's property that is both substantial and unreasonable (*San Diego Gas & Electric Co. v. Superior Court* (1996) 13 Cal.4th 893, 937-938), and trespass requires a physical intrusion onto each parcel. Whether nuisance-level odor attributable to VCF, rather than to any

of the five or more other cannabis operations in the immediate vicinity, actually reached a given parcel, and when, how often, and for how long, are questions the objective standard does not answer and cannot answer on a class-wide basis.

CACI No. 431 concedes the problem rather than curing it. A substantial-factor instruction

presupposes a Plaintiff-specific causation finding; it tells the jury that a Defendant whose conduct combined with other causes to harm "[name of Plaintiff]" remains liable to that Plaintiff. Applied here, the jury would have to make that finding parcel by parcel and year by year, across a decade, with variable winds and multiple sources at varying distances. Plaintiffs' own evidence illustrates the task: the interior reading they emphasize was taken inside VCF's greenhouse, where no class member resides, while the same Geosyntec program recorded readings at the facility's exterior and attributed the offsite odors it detected on Casitas Pass Road to a different cannabis facility located south of the

observers, not VCF, and recorded no offsite odor at all in October 2024.

Mr. Yamaoka's testimony remains un rebutted. Plaintiffs' suggestion that he may be "nose blind" is speculation, and it proves Dr. Dalton's point: whether a resident's changed perception reflects reduced odor, olfactory adaptation, or individual sensitivity is a biological question answerable only person by person. Plaintiffs offer no response to the balance of his testimony, including that he was never physically bothered by odor, never complained, grew approximately 1,000 cannabis plants of his own within the class area, and operated his own vapor phase system, and they offer no response at all regarding Ms. Ishibashi.

Plaintiffs concede that even if Valley Crest never emitted another single terpene from this

moment forward, the class will pursue recovery for harm they have already endured. The concession confirms partial mootness: abatement, the Complaint's professed "main goal," is no longer the object of this suit. What remains defeats predominance twice over.

First, the damages Plaintiffs identify, "annoyance and discomfort" under Kelly, compensate an occupant's personal discomfort, inconvenience, and distress. Such damages vary with each occupant's presence, sensitivity, and experience, and they are unavailable

to non-occupants, which re-raises the very occupancy inquiry Plaintiffs cannot answer with common proof. Plaintiffs cannot invoke an "objective" standard to establish liability in gross while seeking damages that are subjective and personal by definition.

Second, diminution in property value is not recoverable for a temporary, abatable nuisance. Plaintiffs pleaded precisely such a nuisance; their theory has always been that carbon scrubbers would abate it. VCF raised this authority in its Motion and the Opposition ignores it. Mr. Anderson's proposed class-wide diminution model therefore

measures a category of damages the class cannot recover on Plaintiffs' own theory, and his declaration in any event states only that his firm "can analyze whether, and to what extent, property value diminution, if any, occurred. A conditional proposal is not common proof, and any model must still "permit the Defendant to introduce its own evidence, both to challenge the Plaintiffs' showing and to reduce overall damages. Mr. Bourdon proposes a "Sampling and Modeling Plan" to be performed in the future. But the class period reaches back a decade, and trial begins November 19, 2026. Sampling conducted in 2026 can only characterize emissions from a facility that now operates County-verified PCO abatement and grows whatever strains happen to be in rotation on twelve-week cycles, per Plaintiffs' own citation to Mr. Marquez's testimony. It cannot reconstruct which operation's emissions reached which parcels in 2017, 2020, or 2024 under abatement systems and cultivars that no longer exist. Emissions are intangible and transient, and dispersion varies with wind, temperature, and terrain. Offering a proposal to develop common proof in the future is an admission that none exists today. The inspection dispute is a red herring. VCF's motion for a protective order was granted in part, with this Court determining Plaintiffs failed to carry their burden regarding alleged work product, that Plaintiffs must comply with the Cannabis Regulations, and that VCFs raised a genuine issue of confidentiality and privacy. More fundamentally, nothing about access to VCF's greenhouses ever prevented Plaintiffs from doing what Geosyntec did: survey ambient odor within the class area from public vantage points. In three years of litigation, Plaintiffs conducted no such survey. Nor is it VCF's burden to join its neighbors as "indispensable parties"; Plaintiffs chose whom to sue, and VCF is entitled to defend by proving that other operations caused the harms alleged. Equity does not require the Court to preserve an unmanageable class as a sanction it never imposed for a discovery dispute it has not decided.

Plaintiffs admit no trial plan exists and argue none is required absent a Court order. Duran holds otherwise: trial Courts require a plan whenever individual issues loom, precisely so the Court can assess manageability and preserve the Defendant's due process right to litigate its defenses. Two conditional expert proposals served for the first time with an opposition brief do not explain how occupancy, purchase dates, standing, exposure,

causation, or VCF's affirmative defenses will be tried for more than one hundred parcels over a ten-year period in the time allotted. Above all, Plaintiffs fail to address the central holding of Duran that a trial plan is required to show how the proposed trial procedure preserves VCF Due Process rights.

Finally, the continued absence of any plan, four months before trial, is itself a changed circumstance warranting decertification.

VCF responds to Plaintiffs' objections in a separate filing, but two points bear emphasis. First, Dr. Dalton's opinions on the variability of human odor perception and the difficulty of source attribution are scientific opinion within her thirty-year specialty, and they are precisely the kind of evidence Duran directs Courts to consider in assessing whether liability can be managed with common proof. Whether the class remains certifiable is a question for this Court, and nothing in the declaration usurps that role.

Second, *People v. Sanchez* (2016) 63 Cal.4th 665 addresses an expert relating case-specific hearsay as true to a jury; it does not bar this Court, sitting in law and motion, from considering expert analysis of County-commissioned Geosyntec reports and County complaint logs, which are the very documents Plaintiffs submit through their own counsel's

declaration. Plaintiffs cannot rely on Geosyntec when its readings suit them and cry hearsay when they do not.

The Opposition never mentions: (1) the adequacy problem created by the named Plaintiffs'

resolution of their claims against the co-Defendants; (2) the standing mismatch between the Coalition, which asserts only the UCL claim, and the class members, who lack standing under Business and Professions Code Sections 17203 and 17204; (3) superiority, including this Court's discretion to defer to the County's now-operative enforcement regime; and (4) the collapse of numerosity, including the absence of any explanation for Ms. Ishibashi. Each ground was squarely raised in the Motion; each stands un rebutted; and each independently supports decertification. VCF requests that the Court issue an order decertifying the class.

The Court's Conclusions

The Request for Judicial Notice is Granted as follows:

1. Plaintiffs' Complaint filed on September 7, 2023.
2. The Court's Order Granting Plaintiffs' Motion for Class Certification, entered on March 20, 2025.
3. Santa Barbara County Ordinance No. 5244, adopted March 18, 2025, as modified and certified through Santa Barbara County Board of Supervisors Resolution No. 25-241.

The Court reminds counsel that Judicial Notice is the recognition and acceptance by the Court, for use by the trier of fact or by the Court, of the existence of a matter of law or fact that is relevant to an issue in the action without requiring formal proof of the matter. Judicial notice may not be taken of any matter unless authorized or required by law. Matters that are subject to judicial notice are listed in Evid. Code §§ 451 and 452. A matter ordinarily is subject to judicial notice only if the matter is reasonably beyond dispute. Taking judicial notice of a document is not the same as accepting the truth of its contents or accepting a particular interpretation of its meaning. While Courts take judicial notice of public records, they do not take notice of the truth of matters stated therein. When judicial notice is taken of a document, the truthfulness and proper interpretation of the document are disputable. *Herrera v. Deutsche Bank National Trust Co.*, (2011) 196 Cal. App. 4th 1366. [Emphasis the Court's]

The Evidentiary Objections are all overruled.

VCR attacks on the class list are without merit. The class list was prepared over many months (pursuant to the class notice procedures approved by this Court) by the class administrator hired by Plaintiffs: Simpluris. Plaintiffs' counsel then spent weeks investigating the proposed list and ultimately removed those individuals that counsel

believed were not included in the class definition. After this process, the class list was

presented to the attorneys for VCR who now assert that, because it disagrees with Plaintiffs' assessment of who should be removed from the Simpluris class list, the class is not ascertainable and must be decertified. The fact that some individualized inquiry into whether an individual is a member of the class does not mandate that a class action be decertified when (as the Court has already held here) there are common questions of law and fact as to a Defendant's liability.

There are no due process concerns raised by the inclusion of individuals that VCR believes are not properly in the class because VCR is fully permitted to challenge their inclusion at the time of trial.

As is the case in many class actions, disputes over the inclusion of certain individuals in the class are either worked out between the parties or resolved at trial.

These disputes should not result in the decertification of the entire class.

The depositions of unnamed class members offer nothing to indicate that this case

cannot proceed as a class action. VCR contends that the deposition testimony of certain class members shows that each person perceives and is impacted by odor differently and, for this reason, it is necessary to individually assess the odors' impact on every member of the class. But, as argued in their Motion for Class Certification, Plaintiffs' claims for nuisance and trespass are based on an objective standard on what is offensive to the sense of a reasonable person, not the individual bringing the claim. This determination can be made with common proof as to the entire class irrespective of how absent class members themselves are impacted by the odors emanating from VCR's property.

The purportedly "new" expert opinions offered by VCR are nothing more than repackaged arguments that VCR has already offered in the past and are based entirely on an analysis of information that was available to VCR at the time it opposed Plaintiffs' Motion for Class Certification.

Plaintiffs attempted to inspect VCR's property but were denied access; an issue that is now pending before this Court. It would be inequitable to allow VCR to benefit from arguments made in its Motion that are based on its failure to comply with its basic discovery obligations.

The declaration of Dr. Pamela Dalton should be discarded. Dr. Dalton offers improper legal opinions that step on this Court's role of determining whether there is an ascertainable and manageable class. These opinions are based on information that was available to VCR before they opposed Plaintiffs' class certification motion. The time to use that information has come and gone and it cannot now be used to support decertification.

The change in local ordinances does not render this case moot and is irrelevant to whether this case should proceed as a class action. It is by no means clear whether VCR's adoption of PCO Technology is in compliance with the County's newly adopted ordinances concerning odor abatement. Even assuming it is, nuisance and trespass claims include damages for the "annoyance and discomfort" class members have experienced while VCR refused to take any measures to reduce the odors out of its greenhouses.

Judges

Judge Thomas Anderle

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